

Form 15-26
(Rule 15-26)

COURT FILE NUMBER _____

COURT OF KING'S BENCH FOR SASKATCHEWAN
(FAMILY LAW DIVISION)

JUDICIAL CENTRE _____

PETITIONER _____

RESPONDENT _____

APPLICATION FOR VARIATION OF A FINAL ORDER

NOTICE TO RESPONDENT [*or* PETITIONER], _____ .
(name)

This application is being made by the petitioner, _____. You are the respondent.
(*or* This application is being made by the respondent, _____. You are the petitioner.)

You have the right to state your side of this matter before the Court. To do so, you must be in Court when the application is heard as shown below:

Where _____

Date _____

Time _____

THE PETITIONER (*or* RESPONDENT) IS ASKING THE COURT TO MAKE ONE OR MORE ORDERS OR JUDGMENTS AGAINST YOU. If you do not agree with what the petitioner (*or* respondent) is claiming, you must take certain steps to make sure that the Court hears your position.

IF YOU DO NOT AGREE WITH WHAT THE PETITIONER (*or* RESPONDENT) IS CLAIMING, YOU NEED TO DO THE FOLLOWING:

- YOU OR YOUR LAWYER MUST PREPARE AN ANSWER IN FORM 15-29, SERVE AND FILE YOUR ANSWER AND ANY ACCOMPANYING AFFIDAVIT(S), WITH PROOF OF SERVICE, NO LATER THAN 14 DAYS BEFORE THE RETURN DATE SET OUT ABOVE.
- IF YOU FAIL TO SERVE AND FILE AN ANSWER AND ANY AFFIDAVIT TO SUPPORT YOUR POSITION NO LATER THAN 14 DAYS BEFORE THE RETURN DATE SET OUT ABOVE, OR IF YOU FAIL TO APPEAR IN COURT ON THE RETURN DATE SET OUT ABOVE, THE COURT, IN YOUR ABSENCE, MAY GRANT THE ORDER OR JUDGMENT SOUGHT BY THE OTHER PARTY.

- IF THIS APPLICATION CONTAINS A CLAIM FOR CHILD SUPPORT OR SPOUSAL SUPPORT, YOU MUST COMPLY WITH THE NOTICE TO FILE A FINANCIAL STATEMENT THAT HAS BEEN SERVED ON YOU WITH THIS APPLICATION. IF YOU DO NOT COMPLY WITH THIS NOTICE OR THE NOTICE TO FILE A FINANCIAL STATEMENT, THE COURT MAY IMPUTE INCOME TO YOU AND MAY DETERMINE THE AMOUNT OF CHILD SUPPORT PAYABLE ON THE BASIS OF THAT IMPUTED INCOME. IF YOU HAVE BEEN SERVED WITH AN APPLICATION CLAIMING CHILD SUPPORT, PLEASE CONSULT THE FEDERAL CHILD SUPPORT GUIDELINES.

- RIGHT TO REQUEST INTER-JURISDICTIONAL CONVERSION:

IF THIS APPLICATION CONTAINS A CLAIM TO VARY CHILD SUPPORT OR SPOUSAL SUPPORT UNDER THE DIVORCE ACT AND YOU RESIDE IN A PROVINCE OR TERRITORY IN CANADA OTHER THAN SASKATCHEWAN, YOU MAY REQUEST THAT THE SASKATCHEWAN COURT CONVERT THIS APPLICATION INTO AN INTER-JURISDICTIONAL SUPPORT VARIATION APPLICATION UNDER SECTION 18.1 OF THE *DIVORCE ACT*. YOU MUST MAKE THIS REQUEST WITHIN 40 DAYS AFTER BEING SERVED WITH THIS APPLICATION. IF YOU DO NOT MAKE THIS REQUEST WITHIN THIS TIME, YOU MUST COMPLY WITH ALL OTHER REQUIREMENTS SET OUT IN THIS DOCUMENT. TO MAKE THIS REQUEST, YOU MUST COMPLETE FORM 15-110 AND SEND IT TO:

Local Registrar

Court of King's Bench for Saskatchewan (Family Law Division)

(The party making this application is to insert address and fax # of Judicial Centre where the Application for Variation of a Final Order was commenced):

- IF THIS APPLICATION CONTAINS A CLAIM FOR CHILD SUPPORT OR A PARENTING ORDER, YOU ARE REQUIRED TO ATTEND A PARENTING EDUCATION PROGRAM EXCEPT IN LIMITED CIRCUMSTANCES. FAILURE TO ATTEND CAN HAVE SERIOUS CONSEQUENCES TO YOUR COURT CASE. TO ATTEND THE PARENTING EDUCATION PROGRAM, YOU MUST REGISTER AT LEAST 2 DAYS IN ADVANCE, BY TELEPHONE, TOLL-FREE AT 1-877-964-5501.

- 1 The precise order or judgment, and the paragraph(s) of it, sought to be varied:

- 2 Precise relief or remedy sought:

3 Grounds for making this application: (*Set out the statutory provision, rule, order or other legal basis on which the party making the application relies to justify the remedy sought.*)

4 Material evidence to be relied on:

5 The applicable rules are:

6 The applicable Acts and regulations are:

7 A draft order or draft judgment setting out the precise relief or remedy sought is attached.

DATED at _____, Saskatchewan, this _____ day
of _____, 2 ____.

(signature of party)

STATEMENT OF PETITIONER [or RESPONDENT]

(*To be signed by the party making this application if the application is under the Divorce Act.*)

I, _____, the petitioner
(or respondent) in this proceeding, certify that I am aware of my duties pursuant to
sections 7.1 to 7.5 of the *Divorce Act* (Canada).

(signature of party)

Information Note

Sections 7.1 to 7.5 of the *Divorce Act* (Canada) state as follows:

Best interests of child

7.1 A person to whom parenting time or decision-making responsibility has been allocated in respect of a child of the marriage or who has contact with that child under a contact order shall exercise that time, responsibility or contact in a manner that is consistent with the best interests of the child.

Protection of children from conflict

7.2 A party to a proceeding under this Act shall, to the best of their ability, protect any child of the marriage from conflict arising from the proceeding.

Family dispute resolution process

7.3 To the extent that it is appropriate to do so, the parties to a proceeding shall try to resolve the matters that may be the subject of an order under this Act through a family dispute resolution process.

Complete, accurate and up-to-date information

7.4 A party to a proceeding under this Act or a person who is subject to an order made under this Act shall provide complete, accurate and up-to-date information if required to do so under this Act.

Duty to comply with orders

7.5 For greater certainty, a person who is subject to an order made under this Act shall comply with the order until it is no longer in effect.

STATEMENT OF LAWYER

(To be completed if the party making this application is represented by a lawyer and the application is being made pursuant to the Divorce Act, The Children's Law Act, 2020, The Family Maintenance Act, 1997 or The Family Property Act.)

I, _____, the lawyer for _____, the petitioner (or respondent) in this proceeding, certify to this Court that I have complied with the requirements of section 7.7 of the *Divorce Act* (Canada) in discussing with my client the matters of spousal reconciliation, family dispute resolution services, and my client's duties under the *Divorce Act*. *(If the circumstances of the case are of such a nature that it would clearly not be appropriate to so comply, set out the circumstances.)*

I further certify to this Court that I have complied with (as applicable):

- (a) subsection 20(1) of *The Children's Law Act, 2020*;
- (b) subsection 16(1) of *The Family Maintenance Act, 1997*;
- (c) subsection 44.1(1) of *The Family Property Act*;

in discussing with my client the advisability of using alternative methods to resolve matters, and I have informed my client of the collaborative law services and mediation services known to me that might assist in resolving matters. *(If the circumstances of the case are of such a nature that it would clearly not be appropriate to so comply, set out the circumstances.)*

DATED at _____, Saskatchewan, this _____ day
of _____, 2 _____.

(signature of lawyer)

CONTACT INFORMATION AND ADDRESS FOR SERVICE

If prepared by a lawyer for the party

Name of firm: _____

Name of lawyer in charge of file: _____

Address of legal firm: _____
(set out the street address)

Telephone number: _____

Fax number (if any): _____

E-mail address (if any): _____

or

If the party is self-represented

Name of party: _____

Address for service: _____
(set out the street address)

Telephone number: _____

Fax number (if any): _____

E-mail address (if any): _____

Amended, Gaz. 13 Oct. 2023.